# CITY OF OPA-LOCKA

**"The Great City"**

**CLERK'S ACTION SUMMARY MINUTES**
**REGULAR COMMISSION MEETING**
**WEDNESDAY, April 24, 2019**
**7:00 P.M.**
**Sherbondy Village Auditorium**
**215 Perviz Avenue**
**Opa-locka, FL 33054**

## 1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, April 24, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

## 2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

## 3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

## 4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

## 5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The mayor acknowledged that today is Commissioner Burke's birthday.

The city commission presented a commendation to Opa-locka Police Officer Alvin Rodgers for taking action by recognizing a potential threat at Robert B. Ingram Elementary School and resolving the issue without incident.

## 6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: deferred 16(B)1, 16(B)2, and 16(B)4 (Commissioner Burke); pulled 13-3 (Vice Mayor Davis); pulled 13-1, 13-3 and 13-5 (Commissioner Kelley).

## 7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

## 8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – February 27, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the minutes from the Regular Commission Meeting of February 27, 2019.

There being no discussion, the motion passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

Regular Commission Meeting Minutes – March 27, 2019

It was moved by Commissioner Bass, seconded by Commissioner Kelley to approve the minutes from the Regular Commission Meeting of March 27, 2019.

There being no discussion, the motion passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

## 9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said that he does not have anything to report at this time, but will take any concerns the commission may have back to Commissioner Jordan.

Commissioner Kelley said he is still waiting for a follow up call from the person he referred him to regarding the super bowl and events.

Mr. Gardner said he will follow up.

## 10. PUBLIC PRESENTATION:

## 11. CITIZENS' INPUT:

Gina Silas, (no address), said she is humbly requesting a street naming (14090 NW 27th Avenue, Opa-locka, FL) after her grandfather who was a longtime resident, activist and leader. Her grandfather held positions on numerous boards and should be recognized. She would also like for the City to partner with her for a prayer breakfast on July 19, 2019 which is the day the City proclaimed as Reverend Joe Silas Day 17 years ago.

Shalonda Rivers, 13875 NW 22nd Avenue #116, Opa-locka, FL, said it is going on eight months and she has been temporarily located in Doral from her apartment. She said she received a call from residents at 2490 NW 135th Street which is an apartment complex with 48 units; they said Gina Lopez filed evictions on 38 of the units and that is wrong. She asked the commission to look into the matter and see what could be done to solve the problem. In her own complex, the units have been gutted for about seven months and nothing is happening. It is raining inside the units and the rats, roaches and mold is still going on. It has been three years and no resolution. She asked the manager and Mr. Abia to do something about it.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said the public should be made aware that the City has done away with the red light camera program. She applauded Ms. Rivers for the work she is doing bringing awareness to the conditions at the 22nd Avenue Apartments. She said there is someone on the dais taking credit as of recently for the funding that is coming in to the City from the state revolving loan and this is not true. That is as a result of the 2014 – 2015 audit and did not happen just now, this is old legislation and Cairo Lane was a part of that; this is not new.

Toroni Mitchell, 14225 NW 22nd Place, Opa-locka, FL, said she is addressing the water bill issue once again because it is still going on. She spoke with Ms. Braynon regarding her and her mother's house and she is being given the run around. They are being billed the exact same amount every month and this makes no sense. Now that the county has taken over, she will not be paying Opa-locka's water bills because she does not have two meters. She also is not going to be paying for double and triple bills because she does not know where all of these readings are coming from. She needs answers for all of her concerns and no one is helping her.

Andrea Austin, 13875 NW 22nd Avenue, Opa-locka, FL, said she has been living in the City all of her life and it has been good up until the last couple of years. She has been threatened, beaten, and harassed by Opa-locka Police Department and her rights have been violated. She has contacted all of the commission and the manager and has not received one response from anyone regarding her issues. She has contacted several outside agencies to receive assistance and nothing is being done.

Mayor Pigatt asked the legislative aide to assist Ms. Austin.

(Did not state name and address for the record), said she has been living in the City for 37 years and she has never had an issue with her water bills. She has received several bills recently and she cannot afford to pay them. She asked the City what it intends to do about the situation.

Lori Rodriguez, 1840 Opa-locka Blvd, Opa-locka, FL, said her water bills are getting out of control and she does not understand. She has spoken to several people from utility billing and no one can provide her with any answers. Something needs to be done because it makes no sense.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, asked what the rush is to get rid of the city manager. She said there are free services and agencies that can be used to hire a city

manager instead of spending $26,500.00 that the City does not have. Those monies can be used for something else like getting a bus for the seniors.

Mayor Pigatt asked the dais if they wanted to comment on any of the issues raised during citizens forum.

Commissioner Burke said that the City is working on straightening out the water bills and it will take some time. The hiring of a professional city manager will require the City to do what it takes to get a professional city manager.

City Attorney Brown said he has said this time and time again and cautioned the commission to refrain from speaking on the water billing since it is currently in litigation.

Commissioner Kelley said he does not recall being contacted by Ms. Austin regarding her issues as he would have responded.

Vice Mayor Davis presented a resolution of sympathy to the Herrera Family for the loss of their loved one (Oscar Herrera) in a recent shooting.

## 12. ACTION ITEMS:

**1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE, SATISFY AND EXECUTE LIEN RELEASES IN MITIGATION OF CODE ENFORCEMENT LIENS ON PROPERTY LOCATED AT 2345 SERVICE ROAD, OPA-LOCKA, FLORIDA IN THE AMOUNT OF $28,380.37; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley said he has never been in favor of these kinds of items. It always ends the same with the property owners wanting to settle and then they pay the reduced fines and rent out the property without any benefit to the City. He asked the manager how he reached the number for the reduced fine.

Acting City Manager Daughtrey said the Code of Ordinances states that the fine can be reduced by up to twenty five percent (25%).

Commissioner Kelley said there is history in the City for finding properties with high liens and then closing it out for pennies on the dollar when the City needs the money; he will not support the item at this time.

Commissioner Bass asked if it was a residential property or a for sale property. If it is housing for the owner that is one thing, but if they plan on putting it on the market for sale, then the City wants all of the money that is owed.

Vice Mayor Davis agreed with Commissioner Kelley and said he personally would not go any lower than fifty percent (50%) of what is owed.

Mayor Pigatt said there should be some process where the property owner and the City can come to a middle ground where the properties can be rehabilitated and beautify the City, and the liens be satisfied.

Acting City Manager Daughtrey said the problem is that the City has allowed this to go on for too long and the situation needs to be rectified once and for all.

There being no further discussion, the motion on the resolution failed by a 3-2 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | No |
| Commissioner Kelley | No |
| Commissioner Bass | No |
| Mayor Pigatt | Yes |

**2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE, SATISFY AND EXECUTE LIEN RELEASES IN MITIGATION OF CODE ENFORCEMENT LIENS ON PROPERTY LOCATED AT 1300 SESAME STREET, OPA-LOCKA, FLORIDA IN THE AMOUNT OF $137,989.13; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he feels the same about this item as he did with the last one.

Mayor Pigatt said he will not support the item because the property owner had ample time to get the property up to code.

Commissioner Burke said how is it possible that liens are being allowed to run up to this kind of money. There needs to be a cap on the liens and not let it get to this point; this should not be happening.

Vice Mayor Davis said he agrees once again and there definitely needs to be a cap on these liens because this is just too much money that is being accumulated for the owners to pay.

There being no further discussion, the motion on the resolution failed by a 5-0 vote.

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| Commissioner Burke | No |
| Vice Mayor Davis | No |
| Commissioner Kelley | No |
| Commissioner Bass | No |
| Mayor Pigatt | No |

**3 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SUPREME ROOFING AND CONSTRUCTION, INC., IN AN AMOUNT NOT TO EXCEED $285,725.00, FOR THE INSTALLATION OF A NEW ROOF AT THE MUNICIPAL COMPLEX (780 FISHERMAN STREET), IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

Vice Mayor Davis said he believes the internal procurement process is not as transparent and the information should be made available to the residents. He also did not see a bond, pre documentation from a bid meeting or anything else that would show how this came about. Where does it show where it was advertised?

Acting City Manager Daughtrey said they needed companies who were willing to respond immediately. If the contract is approved today, the company will have to provide a bond.

Mayor Pigatt asked if the item has followed the laws of procurement.

City Attorney Brown said he cannot answer the question because he was not involved in the process. The manager would have to provide that response.

Acting City Manager Daughtrey asked the Public Works Director to come before the commission and provide a response.

Public Works Director Airia Austin said because the building is suffering from aggressive mold problems, they wanted to mitigate the concern as soon as possible. At the time of the execution of the contract is when the company will be required to provide the performance bond to the City.

City Attorney Brown said a certified statement needs to be enunciated to explain why this item falls under an emergency.

Mayor Pigatt said he heard the Town Center Building has had leaks for a long time resulting in this action. He asked the manager to figure out how to rectify this problem. He asked the attorney if the item can be voted on tonight.

City Attorney Brown said, "Yes."

Commissioner Burke asked the manager if the budget included a procurement officer.

Acting City Manager Daughtrey said the City advertised, but those who have applied did not have the required municipal experience and this is why the City is in the position it is in right now.

Commissioner Kelley said he is equally concerned about why it has not gone through the normal process, but he knows this is an emergency. He asked that in the future, any item that is an emergency should include the statute declaration the attorney spoke of.

Vice Mayor Davis said he understands the timeliness of the item, but the commission is here to allocate tax payer dollars on behalf of the residents so care needs to be taken with these types of things.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**4 (13-5). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE CITY OF WESTON'S PROFESSIONAL SERVICES AGREEMENT WITH COLIN BAENZIGER & ASSOCIATES, TO CONDUCT AN EXECUTIVE RECRUITMENT FOR A PERMANENT CITY MANAGER, IN AN AMOUNT NOT TO EXCEED $26,500.00, IN A FORM THAT IS ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by Mayor Pigatt, Vice Mayor Davis and Commissioner Burke*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Bass said she is concerned that there is not a cap on this. She spoke to the gentleman who informed her that extra expenses will be billed separately outside of this amount. She cautioned the commission about entering into this type of agreement.

Vice Mayor Davis said he will support the item even though he thinks it is on the high end.

Commissioner Burke said he spoke with Mr. Baenziger also and at this time he is in support of the item.

Commissioner Bass reiterated what she said about the item.

Commissioner Kelley said he did not have a comfort level with meeting with Mr. Baenziger about the item and that is why it did not take place. He does not see the need for spending this kind of money on recruitment; this money is needed elsewhere. You can retain a firm for recruitment and still end up with a small amount of applicants who may or may not qualify and it is not worth the money.

Mayor Pigatt said too often the agenda cover memo does not accompany many items. This is needed to identify the item as well as where the funds will be coming from and it needs to be included every time. He said when Mr. Daughtrey was hired as interim city manager he did not

support it because it did not go through the proper process. The same group pf people continued to apply and that is how the manager was chosen. He asked that they move on this now so the City can have someone to push the ideas of the commission over the next few years; it needs to be done.

There being no further discussion, the motion on the resolution passed by a 3-2 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | No |
| Commissioner Bass | No |
| Mayor Pigatt | Yes |

Commissioner Kelley asked the attorney if the funds were coming from the general funding reserves.

Mayor Pigatt said the item has already been voted on and they have to move forward according to Robert's Rules of order.

Commissioner Kelley said he had asked this prior to the vote being taken.

Mayor Pigatt asked the attorney for his opinion.

City Attorney Brown said this commission has not followed Robert's Rules of Order before and he cannot keep Commissioner Kelley from speaking.

Mayor Pigatt said they need to follow the rules and the discussion can be had during the city manager's report.

**5 (13-9). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING THE GUIDELINES FOR THE CITY OF OPA-LOCKA EDUCATIONAL SCHOLARSHIP PROGRAM AS SET FORTH IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Commission*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Mayor Pigatt said he is excited about the item and the opportunity for the City to help the youth in the community. He wants to amend the item to remove the financial need and proof of adjusted gross income. He asked the clerk since it is her item.

City Clerk Flores explained that she did submit the information, but it is actually a mayor and city commission item.

Mayor Pigatt repeated the amendment and also requested to change the item to reflect the City of Opa-locka awarding the scholarship and not the mayor and city commission.

Vice Mayor Davis said he saw somewhere where there were matching funds from the business owners to go along with what the City is offering.

Mayor Pigatt confirmed this with the manager.

Acting City Manager Daughtrey said the funds have not been received as of yet and there is only the five thousand dollars ($5,000.00).

City Attorney Brown pledged to contribute two thousand dollars (2,000.00) to the scholarship fund.

A motion was made to amend the item removing the financial need requirement and replacing mayor and commission with the City of Opa-locka as the presenter.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis to pass the amendment.

City Attorney Brown informed the commission that since the item is theirs, it does not require a motion and a second.

Commissioner Kelley said he does not have a problem with the renaming, but questioned why remove the financial need portion.

Mayor Pigatt said that way the income will not be factor.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

There being no discussion, the motion on the resolution passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**13. CONSENT AGENDA:**

**1 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE AN INTERLOCAL AGREEMENT WITH MIAMI-DADE COUNTY FOR STORM WATER UTILITY MANAGEMENT, IN AN AMOUNT NOT TO EXCEED $252,162.00, IN A FORM THAT IS ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

**2 (13-6). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE ISSUANCE OF A REQUEST FOR PROPOSALS (RFP) SEEKING A POOL OF ATTORNEYS OR FIRMS TO SERVE AS OUTSIDE LEGAL COUNSEL TO THE CITY ATTORNEY FOR THE CITY OF OPA-LOCKA; FURTHER AUTHORIZING THE ESTABLISHMENT OF A COMMITTEE TO REVIEW AND MAKE RECOMMENDATIONS TO THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by Commissioner Kelley*

**3 (13-7). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING A CAP ON THE AMOUNT OF RETAINERS FOR OUTSIDE LEGAL COUNSEL AT $10,000.00; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by Commissioner Kelley*

**2 (13-8). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY ATTORNEY TO EXECUTE AND IMPLEMENT A SETTLEMENT AGREEMENT, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY, IN BARRY E. MUKAMAL, AS CHAPTER 7 TRUSTEE OF THE BANKRUPCY ESTATE OF ROY STEPHEN SHIVER VS. CITY OF OPA-LOCKA, CASE #: 2018-028275 CA-01; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Attorney*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Pigatt to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**14. NEW ITEMS:**

**15. PLANNING & ZONING:**

**A. HEARINGS:**

**B. APPEALS:**

**16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:**

**A. FIRST READING ORDINANCE(S):**

**B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:**

**1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FORT HE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019).** *Sponsored by City Manager*

This item was deferred by the sponsor.

**2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FORT HE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019).** *Sponsored by City Manager*

This item was deferred by the sponsor.

**3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY OF OPA-LOCKA CODE OF ORDINANCES TO REPEAL OPA-LOCKA CODE OF ORDINANCES, CHAPTER 7 BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS, ARTICLE VI FLOOD DAMAGE PROTECTION; TO ADOPT A NEW ARTICLE VI FLOOD DAMAGE PROTECTION; TO ADOPT FLOOD HAZARD MAPS, TO DESIGNATE A FLOOD PLAN ADMININISTRATOR, TO ADOPT PROCEDURES AND CRITERIA FOR DEVELOPMENT IN FLOOD HAZARD AREAS, AND FOR OTHER PURPOSES; PROVIDING FOR APPLICABILITY; SEVERABILITY; AND AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019).** *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

**4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO CONSIDER ADOPTING A SMALL SCALE AMENDMENT, LAND USE DESIGNATION CHANGE FROM GOVERNMENT TO INDUSTRIAL, FOR THE VACANT PROPERTY AT THE CORNER OF NW 43RD AVENUYE AND NW 133RD STREET, OPA-LOCKA, FLORIDA 33054 AND IDENTIFIED BY FOLIO 08-2129-000-0111 IN THE I-3 THE (LIBERAL INDUSTRIAL) ZONING DISTRICT. LEGAL DESCRIPTION: THE NORTH 480 FEET OF THE WEST 420 FEET OF THE SOUTHWEST ¼ OF THE NORTHWEST ¼ OF THE NORTHWEST ¼ OF SECTION 29, TOWNSHIP 52 SOUTH, RANGE 41 EAST, MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019).** *Sponsored by City Manager*

This item was deferred by the sponsor.

**C. RESOLUTIONS:**

**17. CITY MANAGER'S REPORT:**

Acting City Manager Daughtrey reported that on Saturday, at the Helen L. Miller Center, there were about seventy five residents who came out to the workshop to discuss their water bills and the majority left with an understanding of where the City is with the billing. He is available to answer any questions the commission may have.

Commissioner Burke asked the manager about the vacant positions left behind when employees leave the City. He said if people have been interviewed, then the City needs to do what needs to be done to bring them on.

Acting City Manager Daughtrey acknowledged Commissioner Burke.

**18. OFFICIAL BOARD REPORTS:**

**19. MAYOR/COMMISSION REPORT:**

Commissioner Kelley thanked everyone who assisted with the Easter Eggscursion as it was a success and the youth enjoyed it. He invited everyone to the 68th Annual National Day of Prayer on next Thursday that he is co-hosting with Commissioner Bass; and the Monthly Movie Night will be held on the first Friday of each month.

Commissioner Bass said she is still working on the We Care project and will be bringing it forth as soon as everything is complete.

Mayor Pigatt said the line item for the city manager recruitment search is coming from 81-581920.

Commissioner Kelley asked if the funds were coming from the general fund reserves or the budget amendment.

Mayor Pigatt said it is coming from the general fund and if there is an issue with that, it will come from the budget amendment.

## 20. OFFICIAL BOARD APPOINTMENTS:

A motion was made to appoint Nikita Nixon to the Historic Environmental Preservation Board at-large.

It was moved by Vice Mayor Davis, seconded by Mayor Pigatt to approve the appointment.

There being no discussion, the motion on the appointment passed by a 5-0 vote.

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| Commissioner Burke | Yes |
| Vice Mayor Davis | Yes |
| Commissioner Kelley | Yes |
| Commissioner Bass | Yes |
| Mayor Pigatt | Yes |

## 21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke to adjourn the meeting at 9:21 p.m.

MAYOR

ATTEST:

CITY CLERK